

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1572

By: Lawson

AS INTRODUCED

An Act relating to tourism; amending 68 O.S. 2021, Section 1353, as last amended by Section 4, Chapter 441, O.S.L. 2024 (68 O.S. Supp. 2024, Section 1353) and Section 1403, which relates to apportionments; modifying apportionments for certain fiscal years; limiting certain cap on apportionments to certain fiscal years; amending 68 O.S. 2021, Section 50014, which relates to the Oklahoma Tourism Promotion Act; providing limitation on funds expended for operations eliminating prohibition on expending certain funds for wages and salaries; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 1353, as last amended by Section 4, Chapter 441, O.S.L. 2024 (68 O.S. Supp. 2024, Section 1353), is amended to read as follows:

Section 1353. A. It is hereby declared to be the purpose of the Oklahoma Sales Tax Code to provide funds for the financing of the program provided for by the Oklahoma Social Security Act and to provide revenues for the support of the functions of the state government of Oklahoma, and for this purpose it is hereby expressly

1 provided that, revenues derived pursuant to the provisions of the
2 Oklahoma Sales Tax Code, subject to the apportionment requirements
3 for the Oklahoma Tax Commission and Office of Management and
4 Enterprise Services Joint Computer Enhancement Fund provided by
5 Section 265 of this title, and further subject to the apportionment
6 requirement provided in subsection D of this section, shall be
7 apportioned as follows:

8 1. Except as provided in subsection C of this section, the
9 following amounts shall be paid to the State Treasurer to be placed
10 to the credit of the General Revenue Fund to be paid out pursuant to
11 direct appropriation by the Legislature:

Fiscal Year	Amount
FY 2003 and FY 2004	86.04%
FY 2005	85.83%
FY 2006	85.54%
FY 2007	85.04%
FY 2008 through FY 2022	83.61%
FY 2023 through FY 2027 <u>2025</u>	83.36%
<u>FY 2026 through FY 2027</u>	<u>83.23%</u>
FY 2028 and each fiscal year thereafter	83.61% <u>83.48%</u> ;

21 2. The following amounts shall be paid to the State Treasurer
22 to be placed to the credit of the Education Reform Revolving Fund of
23 the State Department of Education:

24

a. for FY 2003, FY 2004 and FY 2005, ten and forty-two one-hundredths percent (10.42%),

b. for FY 2006 through FY 2020, ten and forty-six one-hundredths percent (10.46%),

c. for FY 2021:

(1) for the month beginning July 1, 2020, through the month ending August 31, 2020, ten and forty-six one-hundredths percent (10.46%), and

(2) for the month beginning September 1, 2020, through the month ending June 30, 2021, eleven and ninety-six one-hundredths percent (11.96%),

d. for FY 2022 and each fiscal year thereafter, ten and forty-six one-hundredths percent (10.46%);

3. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Teachers' Retirement System Dedicated Revenue Revolving Fund:

Fiscal Year	Amount
FY 2003 and FY 2004	3.54%
FY 2005	3.75%
FY 2006	4.0%
FY 2007	4.5%
FY 2008 through FY 2020	5.0%
FY 2021:	

a. for the month beginning July
1, 2020, through the month
ending August 31, 2020 5.0%

b. for the month beginning
September 1, 2020, through
the month ending June 30,
2021 3.5%

FY 2022 5.0%

FY 2023 through FY 2027 5.25%

FY 2028 and each fiscal year thereafter 5.0%;

4. a. except as otherwise provided in subparagraph b of this
paragraph, ~~for the fiscal year beginning July 1, 2022,~~
~~and for each fiscal year thereafter~~ fiscal years 2022
through 2025, eighty-seven one-hundredths percent
(0.87%) shall be paid to the State Treasurer to be
further apportioned as follows:

(1) twenty-four percent (24%) shall be placed to the
credit of the Oklahoma Tourism Promotion
Revolving Fund, but in no event shall such
apportionment exceed Five Million Dollars
(\$5,000,000.00) in any fiscal year,

(2) forty-four percent (44%) shall be placed to the
credit of the Oklahoma Tourism Capital
Improvement Revolving Fund, but in no event shall

1 such apportionment exceed Nine Million Dollars
2 (\$9,000,000.00) in any fiscal year, and
3 (3) thirty-two percent (32%) shall be placed to the
4 credit of the Oklahoma Route 66 Commission
5 Revolving Fund, but in no event shall such
6 apportionment exceed Six Million Six Hundred
7 Thousand Dollars (\$6,600,000.00) in any fiscal
8 year, and

9 b. any amounts for fiscal years 2022 through 2025 which
10 exceed the limitations of subparagraph a of this
11 paragraph shall be placed to the credit of the General
12 Revenue Fund~~+~~, and

13 c. for fiscal year 2026 and subsequent fiscal years, one
14 percent (1.0%) shall be paid to the State Treasurer to
15 be further apportioned as follows:

16 (1) the first Six Million Six Hundred Thousand
17 Dollars (\$6,600,000.00) shall be placed to the
18 credit of the Oklahoma Route 66 Commission
19 Revolving Fund,

20 (2) of any remaining amounts:

21 (a) thirty-six percent (36%) shall be placed to
22 the credit of the Oklahoma Tourism Promotion
23 Revolving Fund, and

1 (b) sixty-four percent (64%) shall be placed to
2 the credit of the Oklahoma Tourism Capital
3 Improvement Revolving Fund; and

4 5. For the fiscal year beginning July 1, 2015, and for each
5 fiscal year thereafter, six one-hundredths percent (0.06%) shall be
6 placed to the credit of the Oklahoma Historical Society Capital
7 Improvement and Operations Revolving Fund, but in no event shall
8 such apportionment exceed the total amount apportioned pursuant to
9 this paragraph for the fiscal year ending on June 30, 2015. Any
10 amounts which exceed the limitations of this paragraph shall be
11 placed to the credit of the General Revenue Fund.

12 B. Provided, for the fiscal year beginning July 1, 2007, and
13 every fiscal year thereafter, an amount of revenue shall be
14 apportioned to each municipality or county which levies a sales tax
15 subject to the provisions of Section 1357.10 of this title and
16 subsection F of Section 2701 of this title equal to the amount of
17 sales tax revenue of such municipality or county exempted by the
18 provisions of Section 1357.10 of this title and subsection F of
19 Section 2701 of this title. The Oklahoma Tax Commission shall
20 promulgate and adopt rules necessary to implement the provisions of
21 this subsection.

22 C. From the monies that would otherwise be apportioned to the
23 General Revenue Fund pursuant to subsection A of this section, there
24 shall be apportioned the following amounts:

1. For the month ending August 31, 2019:

- a. Nine Million Six Hundred Thousand Dollars (\$9,600,000.00) to the credit of the State Highway Construction and Maintenance Fund created in Section 1501 of Title 69 of the Oklahoma Statutes, and
- b. Two Million Dollars (\$2,000,000.00) to the credit of the Oklahoma Railroad Maintenance Revolving Fund created in Section 309 of Title 66 of the Oklahoma Statutes;

2. For the month ending September 30, 2019:

- a. Twenty Million Dollars (\$20,000,000.00) to the credit of the State Highway Construction and Maintenance Fund created in Section 1501 of Title 69 of the Oklahoma Statutes, and
- b. Two Million Dollars (\$2,000,000.00) to the credit of the Oklahoma Railroad Maintenance Revolving Fund created in Section 309 of Title 66 of the Oklahoma Statutes;

3. For the month ending October 31, 2019:

- a. Twenty Million Dollars (\$20,000,000.00) to the credit of the State Highway Construction and Maintenance Fund created in Section 1501 of Title 69 of the Oklahoma Statutes, and

1 b. Two Million Dollars (\$2,000,000.00) to the credit of
2 the Oklahoma Railroad Maintenance Revolving Fund
3 created in Section 309 of Title 66 of the Oklahoma
4 Statutes;

5 4. For the month ending November 30, 2019:

6 a. Twenty Million Dollars (\$20,000,000.00) to the credit
7 of the State Highway Construction and Maintenance Fund
8 created in Section 1501 of Title 69 of the Oklahoma
9 Statutes, and

10 b. Two Million Dollars (\$2,000,000.00) to the credit of
11 the Oklahoma Railroad Maintenance Revolving Fund
12 created in Section 309 of Title 66 of the Oklahoma
13 Statutes; and

14 5. For the month ending December 31, 2019:

15 a. Twenty Million Dollars (\$20,000,000.00) to the credit
16 of the State Highway Construction and Maintenance Fund
17 created in Section 1501 of Title 69 of the Oklahoma
18 Statutes, and

19 b. Two Million Dollars (\$2,000,000.00) to the credit of
20 the Oklahoma Railroad Maintenance Revolving Fund
21 created in Section 309 of Title 66 of the Oklahoma
22 Statutes.

23 D. For fiscal year 2029, and each subsequent fiscal year, Fifty
24 Million Dollars (\$50,000,000.00) shall be placed to the credit of

1 the Oklahoma Capital Assets Maintenance and Protection Fund created
2 in Section 2 of this act.

3 SECTION 2. AMENDATORY 68 O.S. 2021, Section 1403, is
4 amended to read as follows:

5 Section 1403. A. It is hereby declared to be the purpose of
6 Section 1401 et seq. of this title to provide for the support of the
7 functions of the state and local government of Oklahoma; and for
8 this purpose and to this end, it is hereby expressly provided that
9 the revenues derived hereunder, subject to the apportionment
10 provided in subsection B of this section and to the apportionment
11 requirements for the Oklahoma Tax Commission and Office of
12 Management and Enterprise Services Joint Computer Enhancement Fund
13 provided by Section 265 of this title, are hereby apportioned as
14 follows:

15 1. The following amounts shall be paid by the Tax Commission to
16 the State Treasurer and placed to the credit of the General Revenue
17 Fund to be paid out pursuant to direct appropriation by the
18 Legislature:

19	Fiscal Year	Amount
20	FY 2004	85.35%
21	FY 2005	85.14%
22	FY 2006	85.54%
23	FY 2007	85.04%
24	FY 2008 through FY 2022	83.61%

FY 2023 through FY 2027 <u>2025</u>	83.36%
<u>FY 2026 THROUGH FY 2027</u>	<u>83.23%</u>
FY 2028 and each fiscal year thereafter	83.61% <u>83.48%</u> ;

2. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Education Reform Revolving Fund of the State Department of Education:

- a. for FY 2020, ten and forty-six one-hundredths percent (10.46%),
- b. for FY 2021:
 - (1) for the month beginning July 1, 2020, through the month ending August 31, 2020, ten and forty-six one-hundredths percent (10.46%), and
 - (2) for the month beginning September 1, 2020, through the month ending June 30, 2021, eleven and ninety-six one-hundredths percent (11.96%), and
- c. for FY 2022 and each fiscal year thereafter, ten and forty-six one-hundredths percent (10.46%);

3. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Teachers' Retirement System Dedicated Revenue Revolving Fund:

Fiscal Year	Amount
FY 2003 and FY 2004	3.54%
FY 2005	3.75%

1	FY 2006	4.0%
2	FY 2007	4.5%
3	FY 2008 through FY 2020	5.0%
4	FY 2021:	
5	a. for the month beginning July	
6	1, 2020, through the month	
7	ending August 31, 2020	5.0%
8	b. for the month beginning	
9	September 1, 2020, through	
10	the month ending June 30,	
11	2021	3.5%
12	FY 2022	5.0%
13	FY 2023 through FY 2027	5.25%
14	FY 2028 and each fiscal year thereafter	5.0%;
15	4. a. except as otherwise provided in subparagraph b of this	
16	paragraph, for the fiscal year beginning July 1, 2015,	
17	and for each fiscal year thereafter <u>fiscal years 2016</u>	
18	<u>through 2025</u> , eighty-seven one-hundredths percent	
19	(0.87%) shall be paid to the State Treasurer to be	
20	further apportioned as follows:	
21	(1) thirty-six percent (36%) shall be placed to the	
22	credit of the Oklahoma Tourism Promotion	
23	Revolving Fund, but in no event shall such	
24	apportionment exceed the total amount apportioned	

1 pursuant to this division for the fiscal year
2 ending on June 30, 2015, and

3 (2) sixty-four percent (64%) shall be placed to the
4 credit of the Oklahoma Tourism Capital
5 Improvement Revolving Fund, but in no event shall
6 such apportionment exceed the total amount
7 apportioned pursuant to this division for the
8 fiscal year ending on June 30, 2015, and

9 b. any amounts for fiscal years 2022 through 2025 which
10 exceed the limitations of subparagraph a of this
11 paragraph shall be placed to the credit of the General
12 Revenue Fund~~+~~, and

13 c. for fiscal year 2026 and subsequent fiscal years, one
14 percent (1.0%) shall be paid to the State Treasurer to
15 be further apportioned as follows:

16 (1) thirty-six percent (36%) shall be placed to the
17 credit of the Oklahoma Tourism Promotion
18 Revolving Fund, and

19 (2) sixty-four percent (64%) shall be placed to the
20 credit of the Oklahoma Tourism Capital
21 Improvement Revolving Fund; and

22 5. For the fiscal year beginning July 1, 2015, and for each
23 fiscal year thereafter, six one-hundredths percent (0.06%) shall be
24 placed to the credit of the Oklahoma Historical Society Capital

Improvement and Operations Revolving Fund, but in no event shall such apportionment exceed the total amount apportioned pursuant to this paragraph for the fiscal year ending on June 30, 2015. Any amounts which exceed the limitations of this paragraph shall be placed to the credit of the General Revenue Fund.

B. Prior to the apportionments otherwise provided in this section, there shall be apportioned to the Education Reform Revolving Fund of the State Department of Education the following amounts in the following state fiscal years:

FY 2019	\$19,600,000.00; and
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FY 2020 and each year thereafter	\$20,500,000.00.
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SECTION 3. AMENDATORY 68 O.S. 2021, Section 50014, is amended to read as follows:

Section 50014. A. 1. There is hereby created in the State Treasury a revolving fund for the Oklahoma Tourism and Recreation Department, to be designated the "Oklahoma Tourism Promotion Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Oklahoma Tourism and Recreation Department and apportioned to such fund pursuant to the provisions of Sections 1353 and 1403 of this title and such other monies accredited to the fund pursuant to law.

2. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma

1 Tourism and Recreation Department for the purpose of Oklahoma
2 tourism promotion, as defined by Section 50011 of this title,
3 provided that the Department shall ensure that all areas of the
4 state will be adequately promoted, and all monies expended from the
5 fund shall reflect a consistent brand and image in the promotion of
6 Oklahoma tourism; provided, no more than twenty percent (20%) of the
7 amount accruing each fiscal year shall be expended for the purpose
8 of funding operations of the Department.

9 3. No monies from this revolving fund shall be transferred for
10 any purpose to any other state agency or be used for the purpose of
11 contracting with any other state agency or reimbursing any other
12 state agency for any expense with the exception of contracting and
13 payment for research work completed by an institution of The
14 Oklahoma State System of Higher Education. ~~No monies from this~~
15 ~~revolving fund shall be expended for any wage or salary of any~~
16 ~~employee of any state agency.~~ Expenditures from the fund shall be
17 made upon warrants issued by the State Treasurer against claims
18 filed as prescribed by law with the Director of the Office of
19 Management and Enterprise Services for approval and payment.

20 B. 1. There is hereby created in the State Treasury a
21 revolving fund for the Oklahoma Tourism and Recreation Department,
22 to be designated the "Oklahoma Tourism Capital Improvement Revolving
23 Fund". The fund shall be a continuing fund, not subject to fiscal
24 year limitations, and shall consist of all monies received by the

Oklahoma Tourism and Recreation Department and apportioned to such fund pursuant to the provisions of Sections 1353 and 1403 of this title and such other monies accredited to the fund pursuant to law.

2. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the Oklahoma Tourism and Recreation Department for the purpose of funding capital improvement projects or operations at state parks and tourist information centers; provided, no more than twenty percent (20%) of the amount accruing annually shall be expended for the purpose of funding operations.

3. No monies from this revolving fund shall be transferred for any purpose to any other state agency. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

SECTION 4. This act shall become effective July 1, 2025.

SECTION 5. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

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